

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant's counsel's office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client's execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant's late responses were so poor that they required a 24 page meet and confer letter and as such sanctions are appropriate.

#### Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

#### Sanctions

The real issue appears to be sanctions. For interrogatories, section 2030.290(c) provides that "the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Here, defense counsel requested a continuance to May 6, Plaintiff's counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted.

However, Plaintiff's request for \$2,565 is too much for this straightforward motion. Reduced to \$960.00 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

#### **4.**

| <b>CASE #</b> | <b>CASE NAME</b>                                        | <b>HEARING NAME</b>                                                     |
|---------------|---------------------------------------------------------|-------------------------------------------------------------------------|
| CVPS2505858   | DOE K.C., AN<br>INDIVIDUAL VS DOE 1, A<br>PUBLIC ENTITY | DEMURRER ON 1ST AMENDED<br>COMPLAINT OF JOHN DOE K.C.,<br>AN INDIVIDUAL |

**Tentative Ruling:** Overruled.

Responding party to provide notice pursuant to CCP 1019.5.

This is a revival action under CCP § 340.1 for damages arising from childhood sexual assault at a county-operated juvenile detention facility. (First Amended Complaint [“FAC”] ¶¶ 15, 20, 71.) Plaintiff John Doe K.C. (“Plaintiff”), born September 8, 1985, alleges that from approximately November 1999 through March 2000, while he was a minor confined at Indio Juvenile Hall (“IJH”) in Indio, California, he was subjected to repeated acts of childhood sexual assault, molestation, and harassment by County employees, including Defendants Baptist, Glass, and others. (First Amended Complaint [“FAC”] ¶¶ 16, 20.)

Plaintiff further alleges that Defendant Silva, a schoolteacher at the facility, and other employees knew of the abuse but took no remedial action, failed to report it as mandated reporters under the Child Abuse and Neglect Reporting Act, and actively covered it up in a concerted effort to hide evidence of systemic sexual abuse at IJH. (*Id.* at ¶¶ 21, 29.)

On August 8, 2025, Plaintiff filed his original Complaint against Doe 1 and Does 2 through 100. On February 20, 2026, Plaintiff filed a Doe Amendment substituting Defendant County of Riverside (the “County”) in place of the fictitiously named Doe 1.

On April 9, 2026, Plaintiff filed the operative First Amended Complaint (“FAC”), asserting five causes of action against the County and individual Doe defendants: (1) failure to summon medical care; (2) negligence; (3) breach of mandatory statutory duties; (4) intentional infliction of emotional distress (“IIED”); and (5) violation of the Bane Act (Civ. Code § 52.1).

In the instant motion, the County demurs to the entire FAC, arguing that it is immune from liability under Gov. Code § 844.6 because Plaintiff was a juvenile detained at IJH pursuant to a court order, classifying him as a “prisoner.” The County also demurs to individual claims: (1) the first cause of action (failure to summon medical care) is time-barred and not subject to CCP § 340.1; (2) the fourth cause of action (IIED) fails because no statute authorizes such liability against a public entity; and (3) the fifth cause of action (Bane Act) fails because CCP § 340.1 does not apply, Civ. Code § 52.1(n) cannot apply retroactively to conduct from 1999-2000, no government tort claim was presented, the Bane Act cannot be premised on omissions, and no vicarious liability attaches because the alleged sexual misconduct was outside the scope of employment.

In opposition, Plaintiff argues that the County’s demurrer should be overruled as it overlooks numerous viable claims based on childhood sexual assault, including negligence and IIED. Plaintiff contends that CCP § 340.1 applies to all claims arising from childhood sexual assault and therefore does not require prior government claim presentation, and challenges the application of immunity under Gov. Code § 844.6, asserting that it does not apply to juvenile wards. Plaintiff also argues the Bane Act claim is properly stated.

In reply, the County maintains that Plaintiff’s opposition does not address essential statutory defects highlighted in their demurrer. The County asserts that Gov. Code § 340.1 cannot be interpreted to override governmental immunities or satisfy the conditions for liability. Additionally, it reiterates that juvenile detainees are considered “prisoners” under section 844.6, maintaining immunity from claims of injury as asserted by Plaintiff.

Request for Judicial Notice

Plaintiff requests the Court take judicial notice of Senate Committee on Judiciary, Analysis of Sen. Bill 2 “An act to amend Section 52.1 of the Civil Code....” (2021-2022 Reg. Sess.), April 26, 2021 (Exhibit A). (Pl.’s Request for Judicial Notice [“RJN”], Ex. A.) This legislative committee report and bill analysis constitute cognizable legislative history materials for purposes of judicial notice. (*Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 31–37.) *Kaufman* instructs that parties moving for judicial notice of legislative history materials are not required to demonstrate the need to resort to a statute’s legislative history at the time of the request. (*Id.* at 30.) GRANTED as to Exhibit A.

### Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The County demurs to the entire FAC based on immunity under Gov. Code § 844.6. It also specifically challenges the first cause of action for failure to summon medical care, the fourth cause of action for IIED, and the fifth cause of action for violation of the Bane Act, arguing that each of these claims fails to state sufficient facts and is barred by statute of limitations and governmental immunity.

Before filing a demurrer and motion to strike, the moving party must meet and confer with the party who filed the pleading “in person, by telephone, or by video conference” for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (CCP §§ 430.41(a), 435.5(a), 2016.040(a).)

Here, the County’s meet-and-confer efforts consisted solely of written correspondence sent via email on June 8, 2026. (Dade Decl. ¶ 3, Ex. A.) The Declaration of Chaena Dade states only that she “sent meet-and-confer correspondence to Plaintiffs’ counsel” and that “the parties were unable to resolve the dispute.” (*Id.* at ¶¶ 3–4.) Accordingly, the County did not satisfy its meet and confer obligation as required by statute.

### Immunity Under Gov. Code § 844.6

The County demurs to the entire FAC on the ground that it is immune from liability under Gov. Code § 844.6(a)(2) because Plaintiff was a “prisoner” at the time of his injuries. The County asserts that section 844.6 provides immunity to public entities for injuries sustained by any prisoner and that juveniles placed at a juvenile hall fit this classification.

Gov. Code § 844.6(a)(2) states: “[A] public entity is not liable for . . . [a]n injury to any prisoner” unless enumerated exceptions are invoked. (Gov. Code § 844.6(a)(2) [emphasis added].) In *Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, the California Court of Appeal held that “a ward of the juvenile court, committed to a place of custody [] is one involuntarily restrained, one who is in custody as the result of a legal process, and one deprived of his liberty by virtue of a judicial . . . process.” (*Id.* at 410 [internal quotation marks & quotation omitted] [emphasis added].) The court held that such individual qualifies as a “prisoner” under section 844.6. (*Id.*)

In *Patricia J. v. Rio Linda Union School District* (1976) 61 Cal.App.3d 278, the California Court of Appeal clarified that “to come within the purview of section 844.6, a prisoner must be a person confined in a correctional facility or institution under the authority of law enforcement authorities or legal process” and that this “definition of a prisoner applies equally to wards of the juvenile court as well as to adults.” (*Id.* at 287.)

The County contends that section 844.6 provides immunity in circumstances involving individuals classified as prisoners based on their detention status. Relying on *Jiminez* and *Patricia J.*, the County asserts that juveniles placed under court orders in a juvenile hall should logically be considered prisoners under the law. It then contends that the FAC “acknowledges that [Plaintiff] was detained and incarcerated at the juvenile hall and that his confinement was court ordered, which are quintessential characteristics of a prisoner.” (Def.’s Demurrer 12:11–16 [emphasis added].)

However, the FAC does not support the County’s characterization. The FAC alleges only that (1) “IJH was a juvenile hall and/or youth detention center, owned, operated, controlled, managed, maintained, inspected, patrolled, and overseen by Defendants” (¶ 15) and (2) “Plaintiff was in the care and custody of Defendants at IJH” from approximately November 1999 through March 2000 (¶ 16). The FAC does not allege that Plaintiff was “detained and incarcerated” or that his confinement was “court ordered.” There are no allegations that Plaintiff had been adjudged a ward of the juvenile court.

As Plaintiff correctly notes, under Welf. & Inst. Code § 850, persons merely “alleged to come within the jurisdiction of the juvenile court” may also be housed at a juvenile hall. (Welf. & Inst. Code § 850.) Thus, a juvenile may be placed at a facility like IJH without having been adjudicated a ward—meaning the FAC’s allegation that Plaintiff was in the “care and custody” of Defendants does not, by itself, establish “prisoner” status under section 844.6. Neither *Jiminez* nor *Patricia J.* establish that a juvenile housed at a juvenile hall is necessarily a prisoner absent adjudication as a ward.

A demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense. (*Stella v. Asset Mgmt. Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.) Here, the County has not established that the face of the FAC discloses its immunity defense. The County’s purported inferences are insufficient because a demurrer “is not the appropriate procedure for determining the truth of disputed facts or what inferences should be drawn where competing inferences are possible.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 921–22.)

Therefore, the demurrer to the entire FAC on the ground of section 844.6 immunity is OVERRULED.

### 1<sup>ST</sup> Cause of Action - Failure to Summon Medical Care

Gov. Code § 844.6 provides general immunity to public entities from liability for injury to prisoners. (Gov. Code § 844.6(a)(2).) Section 845.6 creates a narrow exception: A public entity is immune from claims based on injuries to prisoners caused by a failure to provide medical care, except when an employee, “acting within the scope of his employment, . . . knows or has reason to know that the prisoner is in need of medical care and he fails to take reasonable action to summon such medical care.” (Gov. Code § 845.6 [emphasis added]; *Castaneda v. Dep’t of Corrs. & Rehabilitation* (2013) 212 Cal.App.4th 1051, 1070.) Gov. Code § 815.2 likewise imposes vicarious liability only for an employee’s act or omission within the scope of employment.

The County demurs to the first cause of action for failure to summon medical care under Gov. Code 845.6 on the grounds that (1) it cannot be held vicariously liable under Gov. Code § 815.2 for its employees’ sexual misconduct, and (2) the claim is barred by the statute of limitations, as Plaintiff failed to timely present a tort claim to the County, and CCP § 340.1 (which extends the statute of limitations period) does not apply to excuse that failure.

The County’s first argument is that the alleged sexual misconduct by County employees falls outside the scope of employment. That is generally consistent with *Lisa M. v. Henry Mayo Newhall Memorial Hosp.* (1995) 12 Cal.4th 291, which held that a hospital technician’s sexual assault was not “engendered by” or an “outgrowth” of his employment where it was the product of personal motives unrelated to the work. (*Id.* at 300.) But this argument does not fit the claim pleaded here, because the section 845.6 claim is not based on the sexual assault itself, but on the alleged failure to summon medical care after employees knew or had reason to know of Plaintiff’s need for immediate care. (See FAC ¶¶ 31–33.) Plaintiff alleges that Defendant Silva, his teacher, knew of that abuse and failed to act. (*Id.* at ¶¶ 5, 17, 21, 26, 32.) On demurrer, that alleged failure is the relevant conduct for purposes of sections 845.6 and 815.2. The County’s scope of employment argument therefore is not persuasive at the pleading stage.

The County further argues that the section 845.6 cause of action is barred because the FAC does not allege timely compliance with the Government Claims Act, and CCP § 340.1’s extended statute of limitations for childhood sexual assault does not apply to a failure to summon medical care claim under section 845.6, and therefore, cannot excuse Plaintiff’s failure to comply with the claims presentation requirement.

Section 340.1(a) authorizes “actions for recovery of damages suffered as a result of childhood sexual assault” “against any person or entity” if their “negligent” or “intentional” act was a legal cause of the childhood sexual assault that resulted in the plaintiff’s injury. (CCP §§ 340.1(a)(2)–(3).) Section 340.1(c) then expressly provides that the statute “does not limit the availability of causes of action permitted under subdivision (a).” (*Id.* at § 340.1(c).) In the first cause of action for failure to summon medical care, Plaintiff alleges that Defendants knew or had reason to know that Plaintiff needed immediate medical care due to the sexual assaults, and that their failure to summon such care caused

Plaintiff's abuse to continue and exacerbated his damages. (FAC ¶¶ 32, 34.) These are damages "suffered as a result of childhood sexual assault" within the meaning of section 340.1.

Moreover, section 340.1(q) provides that "[n]otwithstanding any other law . . . a claim for damages described in . . . subdivision (a), is not required to be presented to any government entity prior to the commencement of an action." (CCP § 340.1(q) [emphasis added].) The phrase "notwithstanding any other law" demonstrates legislative intent to override all contrary law. (See *Klajic v. Castaic Lake Water Agency* (2004) 121 Cal.App.4th 5, 13.) Because Plaintiff brings the failure to summon medical care claim under section 340.1 as an action for recovery of damages resulting from childhood sexual assault, the Government Claims Act does not bar the claim. **OVERRULED**

#### 4<sup>TH</sup> Cause of Action - IIED

Gov. Code § 815(a) provides that a public entity is not liable for an injury unless a statute so provides. (Gov. Code § 815(a).) The purpose of the Government Claims Act is to confine potential governmental liability to rigidly delineated circumstances, not to expand it. (*Eastburn v. Regional Fire Protection Auth.* (2003) 31 Cal.4th 1175, 1179.) Gov. Code § 815.2(a) provides that a public entity is liable for injury proximately caused by an act or omission of an employee within the scope of employment. (Gov. Code § 815.2.) This provision incorporates general respondeat superior standards as the primary basis for vicarious liability of public entities. (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 210–11.)

The County's first argument is that IIED is a common law tort and no statute independently authorizes its imposition against a public entity. The County is correct that section 815 abolished common law governmental liability and that a public entity's liability must be founded on statute. (Gov. Code § 815.) However, section 815.2 is such a statute. It expressly creates vicarious liability for a public entity when an employee's tortious act or omission occurs within the scope of employment. (Gov. Code § 815.2.) Thus, if an employee commits IIED while acting within the scope of employment, the public entity is vicariously liable under section 815.2. (*Id.*) The FAC expressly invokes section 815.2 as the statutory basis for County liability. (FAC ¶ 60.)

The County argues that the alleged conduct was not within the scope of employment such that section 815.2 applies, because sexual misconduct is not required by or incident to employment duties. Indeed, the court in *Lisa M.* held that a hospital technician's sexual assault was not engendered by or an outgrowth of employment. (*Lisa M.*, *supra*, 12 Cal.4th at 300–01.) However, the court also held that when a public employee misuses official authority to commit a sexual assault, the public entity can be held vicariously liable under respondeat superior. (*Mary M.*, *supra*, 54 Cal.3d at 207, 216–17.) The distinction turns on whether the employee's position of authority over the victim furnished the opportunity for the misconduct.

Here, Plaintiff alleges that County employees in positions of custodial authority over a juvenile in County custody committed the sexual assaults, and that other employees

covered up the abuse. (FAC ¶¶ 16, 18, 58–59.) Under *Mary M.*, where employees misuse official authority granted by a public entity to sexually assault persons in their custody, the scope of employment question is, at minimum, a question of fact that cannot be resolved on demurrer. (*Mary M.*, *supra*, 54 Cal.3d at 214, 221.) Thus, the County’s assertion that sexual misconduct is outside the scope of employment as a matter of law is inconsistent with *Mary M.*, at least where, as here, Plaintiff alleges that the employees held custodial authority over the victim.

To the extent the County argues that CCP § 340.1 does not apply to this claim, that argument is unpersuasive. CCP § 340.1(q) provides that claims for damages suffered as a result of childhood sexual assault need not be presented to a government entity before suit. (CCP § 340.1(q).) Here, the IIED claim seeks damages for emotional distress caused by the childhood sexual assault itself, placing it squarely within section 340.1(a). (FAC ¶ 59.) Section 340.1(q)’s exemption from the claims presentation requirement therefore applies to this cause of action. OVERRULED

#### 5<sup>TH</sup> Cause of Action - Violation of Bane Act

The elements of a Bane Act claim are: (1) defendant interfered with or attempted to interfere with plaintiffs’ constitutional or statutory right by threatening or committing violent acts; (2) plaintiffs reasonably believed that if they exercised their constitutional right the defendant would commit violence against them or their property; (3) defendant injured plaintiffs or their property to prevent them from exercising their constitutional right or retaliated against plaintiffs for having exercised their constitutional right; (4) plaintiffs were harmed; and (5) defendant’s conduct was a substantial factor in causing plaintiffs’ harm. (*Austin B. v. Escondido Union Sch. Dist.* (2007) 149 Cal.App.4th 860, 882.)

The County argues that CCP § 340.1 does not apply to Plaintiff’s Bane Act claim, because it does not seek damages “resulting from sexual assault” within the meaning of that section. Specifically, the County contends that the injury Plaintiff is claiming is not for damages caused by childhood sexual assault (*i.e.*, emotional or physical injuries stemming from sexual assault/battery) but for damages resulting from an alleged deprivation of a constitutional right. Citing *Coats v. New Haven Unified School District* (2020) 46 Cal.App.5th 415, the County asserts that section 340.1 cannot be interpreted broadly to encompass any claim related to sexual assault, and that the statute was not intended to extend to claims where the ultimate injury is a deprivation of a civil right.

CCP § 340.1(a) governs “actions for recovery of damages suffered as a result of childhood sexual assault.” Section 340.1(c) defines “childhood sexual assault” as “any act committed against the plaintiff that occurred when the plaintiff was under the age of 18 years and that would have been proscribed by [certain Penal Codes].” (CCP § 340.1(c).) It then expressly states: “This subdivision does not limit the availability of causes of action permitted under subdivision (a), including causes of action against persons or entities other than the alleged perpetrator of the abuse.” (*Id.* [emphasis added].)

The County’s reliance on *Coats* is misplaced. That case addressed whether a third party non-victim, specifically a parent or sibling of an abused child, could invoke section 340.1’s extended limitations period to recover for derivative emotional distress injuries. The *Coats*

court held that the statute did not extend to such third-party claims because the statute refers to damages suffered by the victim “as a result” of the assault, not damages suffered by third parties as a result of witnessing or learning of the assault.

Here, Plaintiff is the direct victim, not a third party. The FAC alleges that Plaintiff was subjected to childhood sexual assaults by County employees while housed at IJH. The Bane Act claim incorporates those assault allegations and seeks damages for physical and emotional injuries caused by the assaults. Coats does not stand for the proposition that section 340.1 should be read narrowly when the direct victim brings claims arising from his own assault. To the contrary, section 340.1(c) expressly states it does not “limit the availability of causes of action permitted under subdivision (a), including causes of action against persons or entities other than the alleged perpetrator of the abuse.” (CCP § 340.1(c).)

The County next argues that under Civ. Code § 52.1(h), “[t]he Legislature expressly prohibited the Bane Act from being asserted with or falling within the purview of section 340.1.” (Def.’s Demurrer 9:25–26.) Section 52.1(h) states: “An action brought pursuant to this section is independent of any other action, remedy, or procedure that may be available to an aggrieved individual under any other provision of law.” (Civ. Code § 52.1(h) [emphasis added].) The County contends that this language bars application of section 340.1’s protections to Bane Act claims.

The County’s argument lacks merit. Section 52.1(h) says “independent of ” of other action or procedure, not that the claim is “excluded from” other procedural protections. (Civ. Code § 52.1(h).) “The Legislature is presumed to know what it was saying and to have meant what it said when it enacts or amends legislation.” (*Kemp v. Schultz* (1981) 121 Cal.App.3d 13, 18; see also *Singh v. Sup. Ct.* (2006) 140 Cal.App.4th 387, 400 [“The Legislature is presumed to know existing law at the time it enacts a statute.”].) Here, if the Legislature had intended to insulate Bane Act claims from section 340.1’s framework, it would have done so expressly. The County identifies no authority construing section 52.1(h) as a bar to the application of procedural protections from other statutes when the Bane Act claim falls within those statutes’ scope.

Given that section 340.1 applies to this claim, the County’s argument that this claim is time-barred for failing to present a tort claim within six months under Gov. Code § 945.4 fails as well. (See CCP § 340.1(q) [“Notwithstanding any other law, . . . a claim for damages described in . . . subdivision (a), is not required to be presented to any government entity prior to the commencement of an action.”].)

The County further argues that governmental immunity under Gov. Code § 844.6 extends to a Bane Act claim. The County asserts that Civ. Code § 52.1(n), which provides that section 844.6 does not apply to Bane Act claims against custodial officers or directly against the employing public entity, does not apply retroactively to conduct occurring in 1999-2000, as it became effective January 1, 2022.

Section 844.6 generally immunizes a public entity from liability for injury to a prisoner. However, as discussed in Section 1(a) above, the County has not sufficiently established on the face of the complaint that it is entitled to section 844.6 immunity. Specifically, the FAC contains no allegation that Plaintiff was confined pursuant to court orders, that he



had been adjudged a ward of the juvenile court, or that he was incarcerated pursuant to lawful penal processes, to constitute “prisoner” within the meaning of section 844.6.

As to section 52.1(n), the County argues that this provision is a substantive amendment that does not apply retroactively to conduct occurring in 1999-2000. However, the Court need not reach this issue since the application of immunity under section 844.6 has not been sufficiently established on the face of the FAC.

The County finally argues that Plaintiff’s Bane Act claim fails because it alleges only “mere inaction,” including failures to report, failures to act, and omissions. The County contends these omissions do not satisfy the Bane Act’s requirement of interference by threat, intimidation, or coercion. This argument is without merit.

In the FAC, Plaintiff alleges that “Defendants unlawfully and wrongfully used, or employed others to wrongfully use, threats, intimidation, harassment, violence, retaliation, and coercion over the Plaintiff’s person, to which the Plaintiff had no relief except to submit[.]” (FAC ¶ 73.) It further alleges that a reasonable person “would have been intimidated, threatened, or coerced by the actions and/or attempted actions of Defendants.” (*Id.* at ¶ 74.)

More significantly, the FAC incorporates the underlying sexual assault allegations. (*Id.* at ¶ 65.) It alleges that County employees Baptist and Glass committed repeated nonconsensual assaults including groping, forcibly placing Plaintiff’s hand on their genitals, throwing soap to force exposure, and attempting to force oral sex. (*Id.* at ¶ 20.) These are not omissions, but rather they are intentional physical acts. The FAC alleges that these employees acted within the course and scope of County employment. (*Id.* at ¶ 17.)

The FAC also alleges affirmative concealment and cover-up of the sexual assaults. It alleges that during Plaintiff’s time at the facility, Defendants “engage[d] in unlawful tactics by, without limitation, ignoring, concealing, and ultimately suppressing the Plaintiff’s complaints of being sexually abused.” (*Id.* at ¶ 67.) It alleges that Plaintiff “was threatened, intimidated, retaliated against, and coerced into not reporting or underreporting Defendants’ sexually abusive and harassing acts by Defendants’ own intimidating, threatening, coercive, and humiliating conduct.” (*Id.* at ¶ 68.) These allegations describe affirmative conduct, not passive failure to act. At the pleading stage, these allegations are sufficient to allege interference by threat, intimidation, or coercion. **OVERRULED**

**5.**

| CASE #      | CASE NAME                                               | HEARING NAME                                                                 |
|-------------|---------------------------------------------------------|------------------------------------------------------------------------------|
| CVPS2505858 | DOE K.C., AN<br>INDIVIDUAL VS DOE 1, A<br>PUBLIC ENTITY | MOTION TO STRIKE 1ST<br>AMENDED COMPLAINT OF JOHN<br>DOE K.C., AN INDIVIDUAL |

**Tentative Ruling:** Granted and denied in part.

Plaintiff granted leave to file 2<sup>nd</sup> Amended Complaint only solely to add an express carve-out making clear those treble-damages allegations are asserted only against non-public